Gmail

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Advance Copy

1 message

harish photo <harishphotostat15@gmail.com>
To: aghrycrmphhc@gmail.com

6 March 2025 at 13:23

Samedeen.pdf
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H.C.J.D./C.—50

542 HC—Item 5—Govt. Press, U.T. Chd.

Application for which urgency is claimed should be submitted to the Deputy Registrar before 11 a.m. and will ordinarily be laid before the Judge appointed to dispose the applications of this class with his petitions on the day following that on which the application is presented.

The application may, however, if specifically requested and the reasons for the request stated, be submitted for orders on the day of presentation. In no case, however, will an application received after 11 a.m. be submitted for orders on the day of presentation.

IN THE HIGH COURT OF JUDICATURE
FOR THE STATES OF PUNJAB AND
HARYANA AT CHANDIGARH

CRM-M - 2025
13696

To

The Addl. Registrar,
High Court, Chandigarh.
Title of case

Samedeen @ Dr. Samed Petitioner/Applicant

State of Haryana Respondent.

Sir,

Will you kindly treat the accompanying petitions as an urgent one in accordance with the provision of Rule 9, Chapter 3-A, Rules and Order High Court, Volume V.

2. The grounds of urgency are— As Regd

40.2
Rep. C
Rahul
10/3/25

Yours faithfully,

(SAMEEDEEN)
Advocate.
(P-1632/B-2004)
(PB-226870)

Dated_____

for Petitioner.

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35038-C4

IN THE HIGH COURT OF PUNJAB AND HARYANA

AT CHANDIGARH

CRM- M-13696 OF 2025

Samedeen@ Dr.Sameer .....Petitioner

Versus

State of Haryana ...Respondent

INDEX

Sr.No.	Particulars	Date	Pages	Court Fee
A.	Urgent form	06.03.2025	A	
B	Synopsis	06.03.2025	1-2	
1.	Petition u/s 483 BNSS	06.03.2025	3-11	
2.	Annexure P-1 (FIR)	18.07.2024	12-17	
3.	Annexure P-2 (Order)	15.01.2025	18-22	
4.	Power of Attorney	25.12.2024	23	
5.	Vernacular of Annexure P-1	18.07.2024	24-32	
6.	Aadhar card of petitioner		33	

Note: Similar case, if any: Nil.

Advance copy has been sent to the State.

Whether any sitting/Former MP/MLA is involved in this case: Nil.

Hard and Soft copies are same

Place: Chandigarh **Dated:** 06.03.2025

Dairy No 5309
Date 6-3-25
Page
Advocate General, Haryana

SAMEYDEEN

(P/1632-B/2004)

(PH-226870) Advocate

Counsel for the Petitioner

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PROCESS FEE

IN THE HIGH COURT OF PUNJAB & HARYANA AT CHANDIGARH

Case No. CRM-M 13696 of 2025

Samedeen @ Dr. Sameer VERSUS State of Haryana

Admitted on	By whom paid	Purpose	Amount
	10रु. कोर्ट फी COURT FEE Rs.10 भारत INDIA दस रुपये TEN RUPEES 10रु. कोर्ट फी COURT FEE Rs.10 भारत INDIA दस रुपये TEN RUPEES 10रु. कोर्ट फी COURT FEE Rs.10 भारत INDIA दस रुपये TEN RUPEES 10रु. कोर्ट फी COURT FEE Rs.10 भारत INDIA दस रुपये TEN RUPEES 10रु. कोर्ट फी COURT FEE Rs.10 भारत INDIA दस रुपये TEN RUPEES		

Note :.....Copies attached / already filed.

Chandigarh

Dated :.....

RECEIPT

CASE NO..... OF 201.....

..... VERSUS.....

CHANDIGARH

DARED .....

MISC. CLERK
HIGH COURT, CHANDIGARH

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Synopsis

1. 1st bail application under Section 483 of BNSS 2023 for grant of regular bail to the petitioner in case FIR No.217 dated 18.07.2024, under Section 420, 120B of IPC, Police Station Quilla, Panipat, District Panipat.

2. That the brief facts of the case are that the applicants are residents of Panipat and are daily wage earners. Accused No. 2 to 5 are members of accused No. 1 company and accused No. 2 to 5 met all of complainants separately and told them that our company will multiply the money tenfold in 18 months and 24 months and will give 5% commission on the amount deposited every month. Our company will return your money to you 10 times like Bitcoin and it is our responsibility to return your money 10 times. Complainants invested their money in the above company to multiply it 10 times. The accused have now refused to give to the complainants

Harjot Singh
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their money. Hence the FIR was registered.

3.That there are no other cases against the petitioner except FIR NO 692/2024 under section 406, 420,504,506 IPC 66D IT Act, P.S. Kairana, Shamli, UP, that is in respect of the same company (Nitro forex Ltd).

4.That the petitioner approached the court of Ld. Addl. Sessions Judge, Panipat for grant of regular bail but the same was declined vide order dated 15.01.2025. A copy of the order dated 15.01.2025 passed by Hon'ble High Court of Panjab and Haryana is hereby annexed as **Annexure P-2.**

Hence the present petition.

Place: Chandigarh **Dated**: 06.03.2025

SAMEYDEEN

(P/1632-B/2004)

(PH-226870) Advocate

Counsel for the Petitioner

Harjot Singh
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IN THE HIGH COURT FOR THE STATES OF

PUNJAB AND HARYANA AT CHANDIGARH

CRM M-13696 OF 2025

Samedeen@ Dr. Sameer Son of Sh. Israr resident of 00 Jagdish Nagar near Noorani Masjid Kutani road Panipat, Haryana 132103 , Aadhar No 4511 7951 5484 , Mobile No.8398850501 age 35 yrs

(The petitioner has not been declared proclaimed offender by any competent Court of law)

(Presently confined in Central Jail, Panipat)

Samedeen@ Dr.Sameer ...Petitioner

Versus

State of Haryana, through its secretory, Haryana civil secretariat Chandigarh

..Respondent

Place: Chandigarh **Dated**: 06.03.2025

SAMEYDEEN

(P/1632-B/2004)

(PH-226870) Advocate

Counsel for the Petitioner

Harjot Singh
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1st bail application under Section 483 of BNSS 2023 for grant of regular bail to the petitioner in case FIR No.217 dated 18.07.2024, under Section 420,406 120B of IPC, Police Station Quilla, Panipat, District Panipat.

RESPECTFULLY SHOWETH:

1. That the petitioner is a peace-loving citizen of India and is entitled to invoke the inherent powers of this Hon'ble Court for grant of regular bail.

2. That the petitioner has been falsely implicated in the present case i.e., FIR No.217 dated 18.07.2024, under Section 120B,420 of IPC, Police Station Quilla, Panipat, District Panipat. A true translated copy of the FIR No.217 dated 18.07.2024 is annexed herewith as **Annexure P-1**.

3. That the brief facts of the case are that the applicants are residents of Panipat and are daily wage earners.

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Accused No. 2 to 5 are members of accused No. 1 company and accused No. 2 to 5 met all of complainants separately and told them that our company will multiply the money tenfold in 18 months and 24 months and will give 5% commission on the amount deposited every month. Our company will return your money to you 10 times like Bitcoin and it is our responsibility to return your money 10 times. Complainants invested their money in the above company to multiply it 10 times. All the complainants had given the money to Baba Naseem (accused no.3) at his house in MIG Colony. Complainants gave the money to the accused on their request and on their assurance, but now the link to the website of the above company has been closed and when the deadline for giving the money to some of our persons was over, the above accused started refusing to give the money and said that it will take some more time.

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When we went to the company again and again, the accused kept on making excuses and now the company has closed its office, after which when complainants went to the houses of accused No.2 to 5, they also do not give them any satisfactory answer. The accused have now refused to give to the complainants their money and have deliberately shut down the company, they have embezzled our money under a well-planned conspiracy and opened another company named Nitro AI, whose address is in the lane opposite Aneja Petrol Pump. They are getting the properties registered in the names of their family members by looting the money of the above-mentioned people. Now the accused say that the company has gone into loss and your money is also over, if you come to us to get the money or make any complaint, you will be killed. The accused have made us innocent people the victims of their well-planned conspiracy and have usurped

Harjot Singh
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lakhs of our rupees and have cheated, deceived, breached the trust and have threatened to kill us if we ask for our money back. Hence the FIR was registered.

4. That, it is relevant to mentioned here that the petitioner is also a victim in that case, because he himself has invested in that company on the assurance given by the owner of the Nitro Forex Company. It is further relevant to mentioned here that as per the KYC of the account of accused company nitro forex Ltd. The company is found to be registered in the name of Accused No.1 Named Parveen katariya.

5. That as per the statement of all the complainants in FIR, the money was given to Baba Naseem (accused no.3) on the assurance given by him at his residence in MIG colony. It is furthermore relevant to mentioned here that the petitioner did not receive any money from the complainants.

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6. It is pertinent to mention here that the petitioner was arrested for the offence of cheating under section 120B and 420 of IPC 1860. Section 420 of IPC is hereby reproduced as "Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine". It is relevant to mentioned here that for the offence of cheating, there must be dishonest inducement on the part of accused but here in that case is concerned, the petitioner has acted with bonafide belief that company is genuine one and in that belief he himself along

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with his family members, has invested in that company a huge amount.

7. That the petitioner is in custody since 04.12.2024 and he is no more required by the police for further investigation and even his custodial interrogation is not required. Therefore, no useful purpose would be served by keeping the petitioner in custody as the trial is likely to take long time for the conclusion.

8. That the petitioner approached the court of Ld. Addl. Sessions Judge, Panipat for grant of regular bail but the same was declined vide order dated 15.01.2025. A copy of the order dated 15.01.2025 passed by Hon'ble High Court of Panjab and Haryana is hereby annexed as **Annexure P-2**.

9. That the petitioner undertakes that he will not violate the terms and conditions as this Hon'ble Court impose at the time of giving concession of regular bail.

10. That the petitioner has a fixed place of abode and there is no likelihood

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of the petitioner fleeing the course of justice.

11. That the petitioner undertakes that he shall appear before the trial court on each date of hearing and shall not leave the country without prior permission of the Hon'ble Court that the petitioner further undertakes that he shall not impress upon any prosecution witness in any manner and shall abide by all the terms and conditions as imposed upon her by this Hon'ble Court.

12. That the petitioner further submits that he will not tamper with the prosecution evidence and will appear before the court as and when required unless exempted.

13. That there are no other cases against the petitioner except FIR NO 692/2024 under section 406, 420,504,506 IPC 66D IT Act, P.S. Kairana, Shamli, UP, that is in respect of the same company (Nitro forex Ltd).

14. That no such or similar petition has earlier been filed by the petitioner

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either in this Hon'ble court or in the Hon'ble Supreme Court and in the session couut.

It is, therefore, respectfully prayed that keeping in view the above mentioned facts and circumstances of the case, the present petition may kindly be allowed and the petitioner may kindly be granted regular bail in case FIR No.217 dated 18.07.2024, under Section 120B,420 of IPC, Police Station Quilla, Panipat, District Panipat, in the interest of justice.

It is further submitted that exemption from filing the certified copy and typed copy of Annexures may kindly be granted, in the interest of justice.

Note: No affidavit is required as the petitioner is confined in Central Jail, Panipat.

Place: Chandigarh **Dated**: 06.03.2025

SAMEYDEEN

(P/1632-B/2004)

(PH-226870) Advocate

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Annexure P-1

Translated Copy of FIR.

FIR NO.217

DATE OF FIR 18.07.2024

UNDER SECTION 120-B AND 420 OF IPC 1860

Mr. SHO Sahib, Police Station Kila, Panipat.

Subject: Legal action to be taken regarding the application against 1- Nitro Forex Limited, office situated at Sector 13-17, behind Thikana Dhaba, Panipat by Director, 2- Praveen Kataria, resident of Railway Road, Gali No. 2, Panipat, Mob. 8295030721, 3- Dr. Sameer, resident Jagdish Nagar, Near Mosque, Panipat, Mob. 7557537786, 4- Baba Naseem son of Haji Altaf, resident of Mai Ji Colony, Devi Mandir, Panipat, Mob. 9354831535, 5- Taseen son of Yasin, resident of Ward No. 6, Babail Road, Panipat, Mob. 93069-84560 .

Sir, the applicants make the following request: 1. That the applicants are residents of Panipat and are daily wage earners. 2. That the above accused No. 2 to 5 are members of accused No. 1's

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company and accused No. 2 to 5 met all of us separately and told us that our company will multiply the money tenfold in 18 months and 24 months and will give 5% commission on the amount deposited every month. Our company will return your money to you 10 times like Bitcoin and it is our responsibility to return your money 10 times. We innocent people fell for the sweet and tempting talks of the above accused and the applicants invested their money in the above company to multiply it 10 times and all this money was spent. we had given the money to Baba Naseem at his house in MIG Colony, the money deposited by the applicants is as follows :- Name of applicant and father's name Amount deposited,

1. Mohammad Shahrukh Malik son of Mohammad Inam Malik Rs. 4.33,000/-
2. Shahzad son of Sagaur Rs. 70,000/-
3. Inam son of Mala Singh Rs. 3,75,000/-
4. Rifakat son of Asgar Rs. 5,11,000/-
5. Shakeel son of Yusuf Rs. 50,000/-
6. Wajid son of Rozudin Rs.25,000/-
7. Nazim son of Rozudin Rs.1,25,000/-
8. Nadeem son of Yasin Rs.1,30,000/-

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9. Irfan son of Yasin Rs.50,000/-

10. Mohammad Sabir son of Mohammad Sabir Khalid Hussain Rs.5,60,000/-

11. Abdul Wajid son of Mulfait Ali Rs.1,90,000/-

12. Mohammad Shakeel son of Abdul Rs.2,50,000/-

13. Naushad son of Mehardin Rs.2.50,000/-

14. Nawab son of Akhtar Rs.6,00,000/-

15. Yunus son of Shamsuddin Rs.2,50,000/-

16. Mohammed Uvesh s/o Khurshid Ahmed Rs.1,27,000/-

17. Gulfam s/o Irfan Rs.2,55,000/-

18. Jamshed Ali s/o Ali Ahmed Rs.1,25,000/- It is that we gave the above money to the accused on their request and on their assurance, but now the link to the website of the above company has been closed and when the deadline for giving the money to some of our persons was over, the above accused started refusing to give the money and said that it will take some more time. When we went to the company again and again, the accused kept on making excuses and now the company has closed its office, after which when we went to the houses of accused No.2 to 5, they also do

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not give us any satisfactory answer. The accused have now refused to give us our money and have deliberately shut down the company, they have embezzled our money under a well-planned conspiracy and opened another company named Nitro AI, whose address is in the lane opposite Aneja Petrol Pump. They are getting the properties registered in the names of their family members by looting the money of the above mentioned people. Now the accused say that the company has gone into loss and your money is also over, if you come to us to get the money or make any complaint, you will be killed. The accused have made us innocent people the victims of their well-planned conspiracy and have usurped lakhs of our rupees and have cheated, deceived, breached the trust and have threatened to kill us if we ask for our money back. Therefore, we request you to register a case against the above culprits and their company and take strict legal action and recover our money from the culprits and return it to us and protect our lives and property. We

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would be highly grateful to you. Date.20/07/2024

23/05/2024...Complainants 1. Mohammad Shahrukh Malik son of Mohammad Inam Malik -sd.2. Shahzad son of Sagir sd.3. Inam son of Mala Singh -sd-98969107834. Rifakat son of Asghar sd.5. Shakeel son of Yusuf -sd.6. Wajid son of Rozudin .sd-7. Nazim son of Rozudin -sd.8. Nadeem son of Yasin .9. Irfan son of Yasin .10. Mohammad Sabir son of Mohammad Sabir Khalid Hussain .11. Abdul Wajid son of Mulfait Ali .sd-12. Mohammad Shakeel son of Abdul -sd.13. Naushad son of Mehrdin sd.14.Nawab son of Akhtar -sd.15. Yunus son of Shamsuddin- sd.16. Mohammad Uvesh son of Khursheed Ahmed -.17. Gulfam son of Irfan -sd-.18. Jamshed Ali son of Ali Ahmed All residents of Panipat. Today in Police Station Complaint No. 1172-Dasti dated 23.05.2024 after investigation SPECIAL DETECTIVE UNIT Panipat Office of Superintendent of Police Panipat TO Register a case and investigate by SHO Quilla Police Station. On finding the nature of the application and

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investigation report, the crime of 420,120B IPC, case number 217 dated 18.07.2024 section 420,1208 IPC, in Police Station Quilla Panipat was registered and computer copies were prepared. The prepared computer copies will be put at the service of by Post Officer. The original application along with the copy was handed over to PSI MANMOHAN for further investigation. The information report was recorded in the presence of SI AJMER SINGH 123 PPT i.e. Kila Panipat.)

(Name of Inquiry Officer): AJMER

CERTIFIED TO BE TRUE TRASLATION

ADVOCATE

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Annexure- R2

18

IN THE COURT OF RAJESH KUMAR MEHTA, ADDITIONAL SESSIONS JUDGE, PANIPAT.

Bail Application no. BA-79-2025
CNR No:HRPP01-000219-2025
Date of Institution:10.01.2025
Date of Decision: 15.01.2025

Samedeen @ Dr. Sameer son of Sh. Israr R/o village Gwalra P.S. Israna District Panipat at present R/o Near Noorani Masjid Jagdish Nagar Panipat.

.....Petitioner/accused.

Versus

State of Haryana

.....Respondent

FIR No.217 dated 18.7.2024
Under Sections: 406,420 IPC
Police Station: Quilla Panipat.

First application for regular bail under section 482 of Bhartiya Nagrik Suraksha Sanhita, 2023

Present : Sh. Silak Singh, Advocate for petitioner/accused Samdeen who is in judicial custody.
Sh. Ashwani Kumar, Public Prosecutor, for respondent/State assisted by SI Bahadur Singh.
Sh. N.K.Attri and Sh. Sanjay Bhargav, Advocates for victims Mohd Javed and Sanjay Aggarwal

ORDER:

1. Accused Samdeen @ Dr. Sameer hereinafter referred as petitioner, who is in custody since 4.12.2024, has filed present first bail application for regular bail under section 483 BNSS , 2023.

2. Notice of bail application was given to the State through SHO, Police Station Quilla Panipat who filed reply and contested the bail application.

3. These are the **facts** of the case that a police complaint was made by

Rajesh Kumar Mehta
ASJ, Panipat. 15.01.2025

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victims Mohd Shahrukh Malik , Shahzad, Inam , Rifakat, Shakil , Wazid, Nazim, Nadim , Irfan , Mohd Sabir, Abdul Wazid, Mohd. Shakil, Naushad, Nawab , Yunus, Mohd. Ovesh , Gulfam and Jamshed Ali.

4. Above victims alleged that accused Director Nytro Forex Ltd. having office at Sector 13-17 Panipat, Parveen Kataria, **Dr. Sameer(petitioner),** Baba Nasin hatched a criminal conspiracy to do an illegal act to cheat the victims. Accused in prosecution of their common object induced the victims to invest with the accused who would multiply their investment ten times . It was further alleged that above victims had given their money, at the house of accused Baba Nasim. Detail of such money was as under:

1.Mohd Shahrukh Malik :	Rs.4,33,000/-
2. Shahzad	Rs.70,000/-
3.Inam	Rs.3,75,000/-
4.Rifakat	Rs.5,11,000/-
5. Shakil	Rs.50,000/-
6. Wazid	Rs.25,000/-
7.Nazim	Rs.1,25,000/-
8.Nadim	Rs.1,30,000/-
9.Irfan	Rs.50,000/-
10.Mohd.Sabir	Rs 5,60,000/-
11. Abdul Wazid	Rs.1,90,000/-
12. Mohd. Shakil	Rs.2,50,000/-
13. Naushad	Rs.2,50,000/-
14.Nawab	Rs.6,00,000/-
15. Younus	Rs.2,50,000/-
16. Mohd Yuvesh	Rs.1,27,000/-
17. Gulfam	Rs.2,55,000/-
18.Jamshed	Rs.1,25,000/-

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5. Victims further alleged that neither their above money was doubled by accused nor they returned such money. Rather accused closed their office. Victims also revealed that as per information collected by them accused amassed crores of rupees by cheating many other victims and from said money accused purchased immoveable and moveable properties in their names and names of their family members. Victims prayed for taking action against accused and to recover their money.

6. On the basis of complaint police registered present **FIR** under sections 420,120B IPC . Investigating Agency collected documents from the victims. Accused Parveen Kumar Kataria was arrested on 26.11.2024 and he suffered disclosure statement and in pursuance thereof record was recovered. Accused Parveen also got recovered sum of Rs.42,000/-.

7. Police on 3.12.2024 arrested another accused Tasin but at that time no evidence came against him, so he was freed after questioning.

8. **Petitioner Samedeen @ Dr. Sameer** was arrested on 4.12.2024 and he in pursuance of disclosure statement got recovered two mobile phones used in the crime and also got recovered sum of Rs.37,000/- and some documents.

9. Police on 13.12.2024 after collecting evidence again questioned accused Tasin and Maulvi Nasim. But they were freed since their involvement was not made out from the evidence available.

10. Investigating Agency moved an application under section 107 BNSS before Ld. Magistrate for attachment of moveable and immoveable properties of

Rajesh Kumar Mehta
ASJ, Panipat. 15.01.2025

Harjot Singh
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accused Parveen Kataria. As per police reply accused are also involved in other case involving FIR no. 692 dated 7.12.2024 under sections 406,420, 504,506 IPC, 66D IT Act , P.S. Kairana Shamli (UP). Further investigation was pending and if bail was granted to the petitioner, he would hamper with the investigation.

11. Ld. Counsel for petitioner **argued** that as per allegations no entrustment was attributed to the petitioner. It was also submitted that accused Tasin and Maulvi were not proceeded against by the police. Ld. Counsel asserted that petitioner was falsely implicated. Ld. Counsel prayed for granting bail to the petitioner.

12. On the other hand Ld. Public Prosecutor for the State assisted by Ld. Counsels for victims **argued** that poor victims were cheated by the petitioner and other accused on the pretext to make their money multiplied by 10 times. It was also submitted that accused had also shown dreams to the victims that they would get crypto currency. It was also alleged that there was a fraud of hundreds of crores by the accused and many other bigwigs were likely to be arrested in the investigation which was underway. Further there was another case of cheating registered against accused.

13. In above facts and circumstances, without commenting on the merits of the case, **it is expressed that** allegations on their face are very serious in nature involving cheating of the victims of lacs of rupees by the petitioner and co-accused in furtherance of common object of their criminal conspiracy. Another case of cheating also stands registered. Investigation is underway to unearth more evidence and to reach to the destination where money of the

Rajesh Kumar Mehta
ASJ, Panipat. 15.01.2025

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PHHC.CHANDIGARH

22

victims is parked. No case is made out for grant of bail. Therefore, regular bail application of petitioner is hereby **dismissed**.

14. File be consigned to the record room after due compliance.

Pronounced in Open Court:
15.01.2025

Rajesh Kumar Mehta
Additional Sessions Judge,
Panipat
UID No.HR0136

Typed By: Mamta Rani, Stenographer-I

T/C

Rajesh Kumar Mehta
ASJ, Panipat. 15.01.2025

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PHHC.CHANDIGARH

23

VAKALATNAMA

FIR NO. 217
Date of FIR
18.07.2024
P.S. Quilla
Panipat
U/S-120B-
420-IPC

IN THE HIGH COURT OF PUNJAB & HARYANA AT CHANDIGARH

Case No. CRM-M 13696 of 2025

Dr. SAMEER @ SAMEDEEN Petitioner / Defendent
Appellant / Petitioner

VERSUS

State of Haryana Respondent
Defendent

KNOW ALL to whom these presents shall come that I/We, the undersigned appoint

SAMEYDEEN
ADVOCATE
PUNJAB & HARYANA HIGH COURT, CHANDIGARH
High Court : Room No. 11, New Bar Complex
Mob. : 9027411119, E-mail : samichaudhry0008@gmail.com

to be the Advocate for the Petitioner in the above-mentioned case to do the following acts, deeds and things or any of them, that is to say :-

1. To act, appear, and plead in the above-mentioned case in this Court or any other Court in which the same may be tried or heard in the first instance or in appeal or Letters Patent Appeal or Review or Revision, or Execution or in any other stage of its progress till its final decision.
2. To present sign and verify Pleadings, Appeals, Letters Patent Appeals ns or Petitions for execution, review, revision, withdrawal, compromise, other petitions ments or other documents as shall be deemed necessary or advisable for the pros ages.
3. To withdraw or compromise the said case or submit t hat shall arise touching, or in any manner relating to the said cause.
4. To deposit , draw and receive moneys and g balance of security and other miscellaneous expenses from court or which may be necessary to be done for the progress and in the said case.
5. To employ any other Advocate authorize him to exe orities hereby confer upon such advocate whenever he may think fit to do so any power to con tioned case on this behalf.

And I/We hereby agree to ratify whatever the Advoca substitutes shall do in the premise and in this connection.

And I/We hereby agree not to hold the Advocate or his substitute responsible for the result of the said case in consequence of his absence from the Court when the said cause is called up for hearing.

And I/We hereby agree that in the event of the whole or any part of the fee agreed by me/us to be paid to the Advocate remaining unpaid, he shall be entitled to withdraw from the prosecution from the said case untill the same is paid and if any costs are allowed for an adjournment, the Advocate would be entitled the same.

And I/We hereby agree that the Advocate will not be bound to appear for us if the case is transferred to any other Court or the Court sits at any place other than its normal place of sitting and if any application or petition is to be filed in the case, the Advocate will be entitled to fresh fee as paid in the case.

IN WITNESS WHERE OF I/WE do hereby set my/our hands to these presents, the contents of which have been explained to, and understood by, me/us.

This the 25 day of 12 2024

BAR COUNCIL OF PUNJAB & HARYANA CHANDIGARH
CHANDIGARH ADVOCATES WELFARE FUND STAMP
Law Bhawan Chandigarh
Rs-25
0062276

SAMEYDEEN
E. No. : P/1632-B/2004
NoR : PH226870
ADVOCATE

समेदीन डा. ईशरार
(Signature or Thumb Impressions)
of the clients

ATTESTED (ONLY LTI)
Dy. Superintendent,
District Prison Panipat (Hr.)
25-12-24
L.T.I

Harjot Singh
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Annexure P-1

24

HARYANA POLICE CITIZEN SERVICES (हरियाणा पुलिस नागरिक सेवा)

FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)
प्रथम सूचना रिपोर्ट
(धारा 154 दंड प्रक्रिया सहिंता के तहत)

1. **District (ज़िला):** PANIPAT **P.S. (थाना):** Quilla Panipat **Year (वर्ष):** 2024

FIR No. (प्र.सू.रि. सं.): 0217 **Date (दिनांक):** 18/07/2024 23:30

2.

S.No. (क्र.सं.)	Acts (अधिनियम)	Sections (धारा(एँ))
1	IPC 1860	120-B
2	IPC 1860	420

3. (a) **Occurrence of offence (अपराध की घटना):**

1 **Day (दिन):** Sunday **Date from (दिनांक से):** 13/11/2022 **Date To (दिनांक तक):** 13/11/2022

Time Period (समय अवधि): Pahar 5 **Time From (समय से):** 13:00 hrs **Time To (समय तक):** 13:00 hrs

(b) **Information received at P.S. (थाना जहां सूचना प्राप्त हुई):** **Date (दिनांक):** 23/05/2024 **Time (समय):** 16:00 hrs

(c) **General Diary Reference (रोजनामचा संदर्भ):** **Entry No. (प्रविष्टि सं.):** 033 **Time (समय):** 18/07/2024 23:19 hrs

4. **Type of Information (सूचना का प्रकार):** Written

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HARYANA POLICE CITIZEN SERVICES (हरियाणा पुलिस नागरिक सेवा)

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5. Place of Occurrence (घटनास्थल):

1. **(a) Direction and distance from P.S. (थाना से दूरी और दिशा):** NORTH-WEST, 1 Km(s) **Beat No. (बीट सं.):**

(b) Address (पता): माई जी कालोनी पानीपत,

(c) In case, outside the limit of this Police Station, then Name of P.S. (यदि थाना सीमा के बाहर है तो थाना का नाम):

District (State) (जिला (राज्य)):

6. Complainant / Informant (शिकायतकर्ता / सूचनाकर्ता):

(a) **Name (नाम):** मौहम्मद शाहरूख मलिक वगैरह

(b) **Father's Name (पिताका नाम):** मौहम्मद ईनाम मलिक

(c) **Date/Year of Birth (जन्म तिथि / वर्ष):** 2000 (d) **Nationality (राष्ट्रीयता):** INDIA

(e) **UID No. (यूआईडी सं.):**

(f) **Passport No. (पासपोर्ट सं.):**

Date of Issue (जारी करने की तिथि): Place of Issue (जारी करने का स्थान):

(g) **Occupation (व्यवसाय):**

(h) **Address (पता):**

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HARYANA POLICE CITIZEN SERVICES (हरियाणा पुलिस नागरिक सेवा)

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S.No. (क्र.सं.)	Address Type (पता का प्रकार)	Address (पता)
1	Present Address	नियर चाँद मस्जिद कुटानी रोड, अशोक विहार कालोनी पानीपत, Quilla Panipat, PANIPAT, HARYANA, INDIA
2	Permanent Address	नियर चाँद मस्जिद कुटानी रोड, अशोक विहार कालोनी पानीपत, Quilla Panipat, PANIPAT, HARYANA, INDIA

(i) **Phone number (दूरभाष सं.):** **Mobile (मोबाइल सं.):** 91-9034372960

7. **Details of known / suspected / unknown accused with full particulars (ज्ञात / संदिग्ध / अज्ञात अभियुक्त का पूरे विवरण सहित वर्णन):**

S. No. (क्र.सं.)	Name (नाम)	Alias (उपनाम)	Relative's Name (रिश्तेदार का नाम)
1	प्रवीन कटारिया		
2	डा0. समीर		
3	बाबा नसीम		Father's Name: हाजी अल्ताफ
4	तासीन		Father's Name: यासीन
5	आफिस डारैक्टर नाईट्रो फौरैक्स लिमिटैड		

8. **Reasons for delay in reporting by the complainant / informant (शिकायतकर्ता / सूचनाकर्ता द्वारा रिपोर्ट देरी से दर्ज कराने के कारण):**

कोई देरी नही की गई ।

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9. Particulars of properties of interest (संबन्धित सम्पत्ति का विवरण):

S. No. (क्र.सं.)	Property Type (सम्पत्ति के प्रकार)	Sub Type (उप प्रकार)	Value(In Rs/-) (मूल्य (रु में))
1	COIN AND CURRENCY	INDIAN RUPEE	43,76,000.00

10. Total value of property stolen (In Rs/-) (चोरी हुई सम्पत्ति का कुल मूल्य(रु में)): 43,76,000.00

11. Inquest Report / U.D. case No., if any (मृत्यु समीक्षा रिपोर्ट / यू.डी.प्रकरण सं., यदि कोई हो):

S. No. (क्र.सं.)	UIDB Number (यू.डी.प्रकरण सं.)

12. First Information contents (प्रथम सूचना तथ्य):

नकल दरखास्त जैल है सेवा में,श्रीमान एस.एच.ओ. साहब, थाना किला, पानीपत। विषयः-दरखास्त बाबत किये जाने कानूनी कार्यवाही बरखिलाफ 1-नाईट्रो फौरैक्स लिमिटैड, आफिस स्थित सैक्टर 13-17, ठीकाना ढाबा के पीछे, पानीपत द्वारा डायैक्टर, 2-प्रवीन कटारिया, निवासी रेलवे रोड, गली नं0.2, पानीपत, मो0.8295030721, 3-डा0. समीर, निवासी जगदीश नगर, नजदीक मस्जिद, पानीपत, मो०. 7557537786, 4-बाबा नसीम पुत्र हाजी अल्ताफ, निवासी माई जी कालोनी, देवी मंदिर, पानीपत, मो0.9354831535, 5-तासीन पुत्र यासीन, निवासी वार्ड नं0.6, बबैल रोड, पानीपत, मो०. 93069-84560 श्रीमान जी, प्रार्थीगण निम्नलिखित प्रार्थना करता है किः- 1. यह है कि प्रार्थीगण पानीपत के रहने वाले है और ध्याड़डी मजदूरी करने वाले व्यक्ति है। 2. यह है कि उपरोक्त दोषीगण नं0.2 ता 5, दोषी नं0.1 कम्पनी के सदस्य है और दोषी नं0.2 ता 5 हम सभी प्रार्थीगण से अलग अलग मिले और उन्होने हमें बताया कि हमारी कम्पनी पैसा 18 महीने 24 महीने में दस गुणा करेगी तथा हर महीन जमा करवाई गई राशि पर 5 प्रतिशत का ब्याज अदा करेगी। हमारी कम्पनी बिटकाउन की तरह एक दम से तुम्हारे पैसे तुम्हे 10 गुणा करके लौटायेगी और तुम्हारे पैसे दस गुणा करके देने की जिम्मेवारी हमारी है जो हम भोले भाले व्यक्ति उपरोक्त दोषीगण की मीठी व लुभावनी बातो में आए गए तथा प्रार्थीगण ने उपरोक्त कम्पनी में अपने रूपये 10 गुणा करने के लिए लगाए जो ये सारे रूपये

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उक्त बाबा नसीम को उसके घर माई कालोनी में देकर आए थे, जो प्रार्थीगण द्वारा लगाए गए रूपये इस प्रकार है:- प्रार्थी का नाम व पिता नाम-जमा करवाई गई राशि 1. मौहम्मद शाहरूख मलिक पुत्र मौहम्मद ईनाम मलिक मु0.4,33,000/- 2. शहजाद पुत्र सगीर मु0.70,000/- 3. इनाम पुत्र माला सिंह मु0.3,75,000/- 4. रिफाकत पुत्र असगर मु0.5,11,000/- 5. शकील पुत्र युसुफ मु0.50,000/- 6. वाजीद पुत्र रोजूदीन मु0.25,000/- 7. नाजिम पुत्र रोजूदीन मु0.1,25,000/- 8. नदीम पुत्र यासिन मु0.1,30,000/- 9. इरफान पुत्र यासिन मु0.50,000/- 10. मौहम्मद साबीर पुत्र मौहम्मद साबीर खालीद हुसैन मु0.5,60,000/- 11. अब्दुल वाजिद पुत्र मुलफैत अली मु0.1,90,000/- 12. मौहम्मद शकील पुत्र अब्दूल मु0.2,50,000/- 13. नौशाद पुत्र मेहरदीन मु0.2,50,000/- 14. नवाब पुत्र अखतर मु0.6,00,000/- 15. यूनूस पुत्र शमशूदीन मु0.2,50,000/- 16. मौहम्मद उवेश पुत्र खुर्शीद अहमद मु0.1,27,000/- 17. गुलफाम पुत्र इरफान मु0.2,55,000/- 18. जमशेद अली पुत्र अली अहमद मु0.1,25,000/- यह है कि उपरोक्त रूपये हमने दोषीगण के कहने पर व उनके आश्वासन पर दोषीगण को दिये, लेकिन अब उपरोक्त कम्पनी की वेबसाईट से लिंक बंद कर दिया और जब हमारे कुछ व्यक्तियो रूपये की समय सीमा देने पूरी हुई तो उपरोक्त दोषीगण रूपये देने में आना कानी करने लगे और कहा कि अभी थोडा और समय लगेगा। 4. यह है कि इसके बाद जब हम बार बार कम्पनी में गए तो दोषीगण द्वारा हमें टाल मटौल किया गया और अब कम्पनी अपना आफिस बंद कर दिया है, जिसके बाद हम दोषीगण नं0.2 ता 5 के घर जाते है तो वे भी हमें कोई सन्तोषजनक जवाब नही देते है। दोषीगण ने अब हमें हमारे रूपये देने से साफ इंकार कर दिया है और कम्पनी को जानबुझकर बंद कर दिया है, सोची समझी साजिश के तहत हमारे रूपये ऐठे, ठगी की है तथा दूसरी कम्पनी खोली है, जिसका नाम नाईटरो ए.आई. है।, जिसका पता अनेजा पैट्रोल पम्प के सामने वाली गली में है। उपरोक्त दोषीगण जनता के पैसे की लूट करके प्रोप्रटियां अपने परिवार के आदमियो के नाम करवा रहे है। अब दोषीगण कहते है कि कम्पनी घाटे में चली गई है तुम्हारे पैसे भी खत्म हो गए है, अगर हमारे पास रूपये लेने आए या कोई शिकायत की तो तुम्हे जान से खत्म कर देगे। इस प्रकार दोषीगण ने हम भोले भाले लोगो को अपनी सोची समझी साजिश का शिकार बनाकर हमारे लाखो रूपये हडप लिये है और हमारे साथ धोखधडी, छलकपट, अमानत में ख्यानत की है तथा रूपये वापिस मागने पर जान से मारने की धमकी दी है। अतः आपसे प्रार्थना है कि उपरोक्त दोषीगण व इनकी कम्पनी के खिलाफ मुकदमा दर्ज करके सख्त से सख्त कानूनी कार्यवाही की जावे तथा दोषीगण से हमारे रूपये बरामद कर वापिस दिलवाये जावे व हमारी जान माल की सुरक्षा की जावे। आपकी अति कृपा होगी। दिनांक

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HARYANA POLICE CITIZEN SERVICES (हरियाणा पुलिस नागरिक सेवा)

FIRST INFORMATION REPORT
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(धारा 154 दंड प्रक्रिया सहिंता के तहत)

23/05/2024 ..प्रार्थीगण 1. मौहम्मद शाहरूख मलिक पुत्र मौहम्मद ईनाम मलिक –sd- 2. शहजाद पुत्र सगीर –sd- 3 . इनाम पुत्र माला सिंह –sd- 9896910783 4. रिफाकत पुत्र असगर –sd-5. शकील पुत्र युसुफ –sd- 6. वाजीद पुत्र रोजूदीन –sd- 7 नाजिम पुत्र रोजूदीन –sd-8. नदीम पुत्र यासिन –sd- 9. इरफान पुत्र यासिन –sd-10. मौहम्मद साबीर पुत्र मौहम्मद साबीर खालीद हुसैन –sd- 11. अब्दुल वाजिद पुत्र मुलफैत अली –sd- 12. मौहम्मद शकील पुत्र अब्दूल –sd- 13. नौशाद पुत्र मेहरदीन –sd- 14. नवाब पुत्र अखतर –sd- 15. यूनूस पुत्र शमशुद्दीन –sd- 16. मौहम्मद उवेश पुत्र खुर्शीद अहमद –sd- 17. गुलफाम पुत्र इरफान –sd- 18. जमशेद अली पुत्र अली अहमद-sd-, सभी निवासीगण पानीपत। अज थाना शिकायत नम्बरी 1172-दस्ती दिनांक 23.05.2024 बाद जाँच SPECIAL DETECTIVE UNIT पानीपत कार्यालय पुलिस अधीक्षक पानीपत से TO Register a case and investigate SHO Quilla बजरिया डाक थाना मे प्राप्त हुई । दरखास्त मजबुन व जाँच रिपोर्ट से सुरत जुर्म 420,120B IPC का सरजद होना पाया जाने पर मुकदमा नम्बर 217 दिनांक 18.07.2024 धारा 420,120B IPC थाना किला पानीपत दर्ज रजिस्टर किया जाकर कम्पयुटर प्रतियाँ तैयार की गई । तैयार शुदा कम्पयुटर प्रतियाँ बजरिया डाक अफसरबाला की सेवा मे भेजी जाएगी । नकल मिशल मय असल दरखास्त अगामी तफतीश हेतु PSI MANMOHAN के हवाले की गई । (प्रथम सुचना रिपोर्ट SI AJMER SINGH 123 PPT थाना किला पानीपत की हाजरी मे दर्ज की गई)

13. **Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2.**
(की गयी कार्यवाही : चूंकि उपरोक्त जानकारी से पता चलता है कि अपराध करने का तरीका मद सं. 2 में उल्लेख धारा के तहत है.):

(1) **Registered the case and took up the investigation** (प्रकरण दर्ज किया गया और जांच के लिए लिया गया): **Rank** (पद): SI (Sub-Inspector) **or** (या)

(2) **Directed (Name of I.O.)** (जांच अधिकारी का नाम): AJMER

No. (सं.): 123PPT **to take up the Investigation** (को जांच अपने पास में लेने के लिए निर्देश दिया गया) **or** (या)

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HARYANA POLICE CITIZEN SERVICES (हरियाणा पुलिस नागरिक सेवा)

FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)
प्रथम सूचना रिपोर्ट
(धारा 154 दंड प्रक्रिया सहिंता के तहत)

Directed (Mobile No. of I.O.) (जांच अधिकारी का मोबाइल नंबर): 917015082705

(3) **Refused investigation due to (जांच के लिए):** **or (के कारण इंकार किया या)** **District (ज़िला):**

(4) **Transferred to P.S. (थाना):**

on point of jurisdiction (को क्षेत्राधिकार के कारण हस्तांतरित).

F.I.R. read over to the complainant / informant, admitted to be correctly recorded and a copy given to the complainant /informant, free of cost. (शिकायतकर्ता / सूचनाकर्ता को प्राथमिकी पढ़ कर सुनाई गयी, सही दर्ज हुई माना और एक कॉपी निशुल्क शिकायतकर्ता को दी गयी)

R.O.A.C. (आर.ओ.ए.सी.)

14. **Signature / Thumb impression of the complainant / informant (शिकायतकर्ता / सूचनाकर्ता के हस्ताक्षर /अंगूठे का निशान)**

Signature of Officer in charge, Police Station (थाना प्रभारी के हस्ताक्षर)

Name (नाम): Mahavir Singh

Rank (पद): SI (Sub-Inspector)

No. (सं.): 911

15. **Date and time of dispatch to the court (अदालत में प्रेषण की दिनांक और समय):**

Attachment to item 7 of First Information Report (प्रथम सूचना रिपोर्ट के मद 7 संलग्नक):

Physical features, deformities and other details of the suspect/accused: (If known / seen)

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FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)

प्रथम सूचना रिपोर्ट

(धारा 154 दंड प्रक्रिया संहिता के तहत)

(संदिग्ध / अभियुक्त की शारीरिक विशेषताएँ, विकृतियाँ और अन्य विवरण: (यदि ज्ञात / देखा गया))

S. No. (क्र.सं.)	Sex (लिंग)	Date / Year Of Birth (जन्म तिथि / वर्ष)	Build (बनावट)	Height (cms) (कद (से.मी.))	Complexion (रंग)	Identification Mark(s) (पहचान चिन्ह)
1	2	3	4	5	6	7
1	Male	1999				
2	Male	1996				Is pox pitted: Yes
3	Male	1994				Is pox pitted: Yes
4	Male	1994				Is pox pitted: Yes
5	Male	1994				Is pox pitted: Yes
						Is pox pitted: Yes

Deformities / Peculiarities (विकृतियाँ / विशिष्टताएँ)	Teeth (दाँत)	Hair (बाल)	Eye (आँखें)	Habit(s) (आदतें)	Dress Habit (s) (पहनावा)
8	9	10	11	12	13

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(धारा 154 दंड प्रक्रिया संहिता के तहत)

Language/Dialect (भाषा/बोली)	Place of (का स्थान)					Others (अन्य)
	Burn Mark (जले हुए का निशान)	Leucoderma (लुकोदेर्मा(सफ़ेद धब्बे))	Mole (मस्सा)	Scar (घाव)	Tattoo (गूदे हुए का)	
14	15	16	17	18	19	20

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.
(यह क्षेत्र तभी दर्ज किए जाएंगे यदि शिकायतकर्ता / सूचनाकर्ता संदिग्ध / अभियुक्त के बारे में कोई एक या उससे अधिक जानकारी देता है)

T/C

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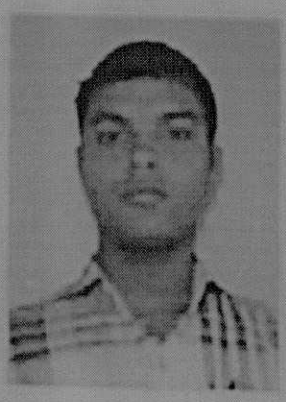
भारत सरकार
Government of India

आधार



Issue Date: 15/06/2013

समेदीन
Samedeen
जन्म तिथि/DOB: 10/10/1989
पुरुष/ MALE

4511 7951 5484
VID : 9124 2660 7182 8465

मेरा आधार, मेरी पहचान

भारतीय विशिष्ट पहचान प्राधिकरण
Unique Identification Authority of India

AADHAAR

पता:
स/ो इस्रार, ००, जगदीश नागर, नियर नूरानी मस्जिद, कुटनी रोड, पानीपत, पानीपत, हरयाणा - 132103

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